

the husband for life, remainder to the wife for life, remainder to the first and other sons in tail, and another part be given to the husband for life, remainder to the heirs male of his body; for, as it appears the parties knew how a strict settlement should be framed, the limitation of part of the estate in a different mode could only have proceeded from a different intention (*f*).

8. **Heirs female.**—It was formerly argued, that *daughters* in marriage articles were not entitled to the same consideration as sons, on the ground that they do not, like sons, continue the name of the family, and are generally provided for, not by the estate itself, but by portions out of the estate; but it is now clearly settled, that, as they are purchasers under the marriage, and are entitled to some provision, the Court will in their favour construe heirs female to mean daughters (*g*); and unless the articles themselves make an express provision for them by way of portion, &c. (*h*), will hold daughters, as well as sons, to be included under the general term of heirs of *the body (*a*), or [*115] issue (*b*). And the settlement will be executed on the daughters, in default of sons, as tenants in common in tail general, with cross remainders between them (*c*).

9. **Limitation of chattels to heirs of the body.**—If *chattels* be articulated to be settled on the parents for life, and then on the *heirs of the body* of either, or both, it seems the chattels will not vest absolutely in the parents, but in the eldest son as the heir, though taking by purchase, and if there be no son, in the daughters as co-heiresses (*d*); and for the son or daughters to take, it is not necessary that they should survive the parents and become the actual heir (*e*), unless there be

(*f*) *Howel v. Howel*, 2 Ves. 359; and see *Powell v. Price*, 2 P. W. 535; *Chambers v. Chambers*, Fitzgib. Rep. 127; S. C. 2 Eq. Ca. Ab. 35; *Rochford v. Fitzmaurice*, 1 Conn. & Laws. 174.

(*g*) *West v. Errissey*, 2 P. W. 349.

(*h*) *Powell v. Price*, 2 P. W. 535; and see Mr. Fearn's observations, Conting. Rem. 103.

(*a*) *Burton v. Hastings*, Gilb. Eq. Rep. 113; S. C. 1 Eq. Ca. Ab. 393, per Lord Cowper.

(*b*) *Hart v. Middlehurst*, 3 Atk. 371; and see *Maguire v. Scully*, 2 Hog. 113; S. C. 1 Beat. 370.

(*c*) See *Marryat v. Townley*, 1 Ves. 106; *Phillips v. James*, 4 Drew. & Sm. 404.

(*d*) *Hodgeson v. Bussey*, 2 Atk. 89; S. C. Barm. 195. See *Bartlett v. Green*, 13 Sim. 218.

(*e*) *Theebridge v. Kilburne*, 2 Ves. 233.